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U.S. Department of State Diplomacy in Action

Djibouti

Bureau of Democracy, Human Rights, and Labor

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Djibouti is a republic with a strong presidency and a weak legislature. In 1999, the country elected its second president since gaining independence in 1977. Ismael Omar Guelleh, the candidate of the ruling People's Rally for Progress (RPP) that has ruled the country since independence, won the election with 74 percent of the vote. The election was considered generally free and fair. In the 2002 legislative elections, the ruling party coalition won all 65 seats, amid opposition claims of massive fraud. The judiciary was not independent of the executive and was subject to corruption and inefficiency.

Security forces include the National Police Force (FNP) and the Gendarmerie Nationale under the Ministry of Interior, the army under the Ministry of Defense, and an elite Republican Guard under the Presidency. An intelligence bureau under the direction of the National Security Advisor reports directly to the President. The FNP is responsible for internal security, border control, and prisons. The Gendarmerie Nationale is responsible for internal security. The army is responsible for external security, but also has some domestic security responsibilities. The Republican Guard is responsible for the protection of the President. While civilian authorities generally maintained effective control of the security forces, there were instances in which elements of the security forces acted independently of government authority. Security forces committed serious human rights abuses.

The country's mixed economy has little industry and few natural resources; its population was estimated at 660,000. Outside the capital city, the primary economic activity was nomadic subsistence. In 2003, the rate of economic growth was estimated at 3.5 percent, and inflation was 3 percent; wages and benefits have not increased in 10 years. The part of the annual gross domestic product not generated by and for the foreign community was estimated at no more than \$250 per capita annually. Much of the country's wealth was concentrated in the hands of a small elite.

The Government's human rights record remained poor, and it continued to commit serious abuses. The Government limited citizens' rights to change their government. There was at least one report of the arbitrary or unlawful deprivation of life by security force members. There were reports that security forces beat and physically abused prisoners and detainees. Prison conditions remained harsh. Official impunity was a problem. The Government continued to detain persons arbitrarily, and prolonged detention was a problem; however, unlike in the previous year, there were no reports that persons were held incommunicado. The Government infringed on citizens' privacy rights; restricted freedom of the press; limited freedom of assembly; used force to disperse demonstrations and strikes; and restricted freedom of association. Violence and discrimination against women persisted, and, although the Government prohibited such practices, the practice of female genital mutilation (FGM) continued to be widespread. Discrimination on the basis of ethnicity, nationality, and clan background persisted. The Government restricted unions and harassed and intimidated their leaders.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no politically motivated killings by the Government or its agents; however, security forces killed a few persons during the year.

On March 3, in Obock, a military vehicle hit and killed Hassan Mohamed Kassim, a 4-year-old child. The soldier driving the vehicle fled the scene and subsequently claimed that the vehicle lacked brakes; he has not been charged in connection with the incident.

In early July, four members of the Gendarmerie reportedly severely beat a military pensioner who had become disgruntled after being refused entrance to the National Treasury. The victim died 3 days later of severe trauma to the head and a brain hemorrhage. The Chief of the Gendarmerie, who initially refused to conduct an internal investigation, agreed to do so only after being pressured by the pensioner's family; however, he subsequently refused to allow the four to appear in court. A trial was pending at year's end.

Unlike in previous years, there were no reports of deaths in connection with the expulsions of undocumented foreigners.

No action was taken in the September 2003 killing by security forces of an undocumented foreigner during a roundup of illegal immigrants or the 2002 killing of a protester by members of the presidential guard.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits such practices; however, there continued to be reports that police and gendarmes beat and physically abused prisoners and detainees.

On April 25, Farah Paris, an officer of the police unit in charge of political security, assaulted and arrested without charge Mohamed Darar Waberi, a known opponent of the Government. Ali Kahin, the Commanding Colonel of City Police, placed Waberi in custody; Waberi was released after 5 days.

Police beat protesters while dispersing a demonstration during the year (see Section 2.b.).

Members of police vice squads targeted prostitutes on the streets and reportedly raped them as a precondition for their release.

Prison conditions were harsh, and overcrowding was a serious problem. Conditions at Nagad detention center, where foreigners were held prior to deportation, also were extremely harsh. Detainees at Nagad were held in unsanitary conditions and often were not fed for several days before their deportation.

Several prisoners reportedly suffered from untreated illnesses or injuries received during arrest. Medical care was inadequate, and the prison infirmary lacked sufficient medication and medical staff.

Women and men were held in separate cells. Children of female inmates under the age of 5 sometimes were allowed to stay with their mothers. In principle, juveniles were housed separately from adult prisoners; however, in practice, this was not always the case. Pretrial detainees usually were not held separately from convicted prisoners due to the lack of facilities.

The Government granted access to the International Committee of the Red Cross (ICRC) to the prisons for annual inspections and to monitor Gabode prison's sanitation system.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, the Government did not respect these prohibitions. The Government did not take steps to prosecute human rights abusers, and official impunity was a problem. There were reports of police corruption, particularly in the lower ranks on the streets.

The law stipulates that the Government may not detain a person beyond 48 hours without an examining magistrate's formal charge. Detainees may be held another 24 hours with the prior approval of the public prosecutor. All persons, including those accused of political or national security offenses, must be tried within 8 months of arraignment. The law also provides for bail and expeditious trial; however, the police occasionally disregarded these procedures. Unlike in previous years, there were no reports that incommunicado detention was used.

There were several reports of arbitrary arrest (see Section 1.c.). For example, on January 4, during a roundup of illegal aliens, police arrested a citizen of the country who had been released from Peltier Hospital on a temporary pass. Despite the presentation of his national identity card, the individual was sent to Nagad Detention Center, where police reportedly demanded money in exchange for his release. There were reports that other citizens were forced to bribe police for their release during roundups of illegal foreigners.

During the year, two members of a religious group were arrested and imprisoned on libel charges (see Section 2.a.).

Security forces arbitrarily arrested and detained journalists during the year (see Section 2.a.).

On June 26, the Government released or reduced sentences of prisoners as part of an Independence Day amnesty. Prisoners serving 1 year or less were released; prisoners with longer terms received reductions in their sentences. The amnesty excluded drug dealers, those held for money fraud, and rapists.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, in practice, the judiciary was not independent of the executive. Constitutional provisions for a fair trial were not respected universally, even in nonpolitical cases.

The judiciary, based on the French Napoleonic code, was composed of a lower court, an appeals courts, and a Supreme Court. The Supreme Court may overrule decisions of the lower courts. Magistrates are appointed for life terms. The Constitutional Council rules on the constitutionality of laws, including those related to the protection of human rights and civil liberties; however, its rulings did not always protect these rights.

The legal system is based on legislation and executive decrees, French codified law adopted at independence, Islamic law (Shari'a), and nomadic traditions. Urban crime was dealt with in the regular courts in accordance with French inspired law and judicial practice. Civil actions may be brought in regular or traditional courts. During the year, the Government published and began implementing the 2002 Family Code, which replaces Shari'a in governing the majority of laws pertaining to family and personal matters, including marriage, divorce, child custody, and inheritance matters. Issues that fall under the Family Code are brought to civil court, and both parties are given the opportunity to present their case to the judge; the court then tries to reach a reconciliation agreement between the two parties. If no solution can be found, the Judge decides the case based on the appropriate statutes in the Family Code.

Traditional law often was used in conflict resolution and victim compensation. For example, traditional law often stipulates that a blood price be paid to the victim's clan for crimes such as murder and rape.

The Constitution states that the accused is innocent until proven guilty; however, the Government did not protect this right in practice. Prisoners have the right to be examined by a doctor. Trials generally were public, except in politically sensitive cases when security measures effectively prevented public access. Legal counsel was supposed to be available to the indigent in criminal and civil matters; however, defendants often did not have legal representation. Court cases were heard before a presiding judge and two accompanying judges. The latter received assistance from two persons, lay assessors, who were not members of the bench, but who were considered to possess sufficient legal knowledge to comprehend court proceedings. The Government chose lay assessors from the public at large, but reports indicated that political and ethnic affiliations played a role in the selection.

No action was taken on the 2003 opposition coalition complaint filed with the Council of Claims alleging abuse of power by the ruling party in the January 2003 legislative elections.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits such actions; however, the Government did not respect these prohibitions in practice. The law requires that the authorities obtain a warrant before conducting searches on private property; however, in practice, the Government did not always obtain such warrants. The Government reportedly monitored and sometimes disrupted the communications of some government opponents by cutting their telephone or electric service. Police reportedly frequently followed persons who attended opposition rallies.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government restricted these rights in practice.

The law prohibits the dissemination of false information and regulates the publication of newspapers. The Government owned the principal newspaper, La Nation, which was published three times a week. In addition, each registered political party is permitted to publish a public journal. There were several opposition run weekly and monthly publications that circulated freely and openly criticized the Government.

The Government also owned the radio and television stations. The official media generally were uncritical of government leaders and government policy. Radio Television Djibouti, the official government station, broadcast 24 hours a day in four languages on the radio. Foreign media also broadcast throughout the country.

During the year, several persons were arrested for libel. On March 15, Sheikh Abdokarim Ismael Abdo and Sheikh Artouli, two members of a religious "sect" of Mohamedians, were arrested on charges of libel after writing an open letter to all Ministers criticizing the President and calling for an end to persecution of the Mohamedian Brotherhood. The two sheikhs, who were tried and sentenced to 6 and 8 months, respectively, remained in Gabode Prison at year's end.

On April 11, police arrested without charge Abdoukader Abdillahi Miguil, the editor of the Ali Sabieh Tribune, after he published an article describing the unpopularity of government policies; on April 12, Miguil was released.

During the year, the Government lifted the 2000 ban on the importation and sale of Somaliland newspapers Jamhuuriya and The Republican.

The country had one government-owned Internet service provider, and the Government did not prevent access to the Internet.

The Government generally did not restrict academic freedom, and teachers could speak and conduct research without restriction, provided that they did not violate sedition laws. However, during the year, the Government blocked the salaries of teachers involved in strike activity (see Section 6.b.).

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government limited this right in practice. The Ministry of Interior requires permits for peaceful assembly and monitors opposition activities. Some opposition leaders effectively practiced self censorship and refrained from organizing popular demonstrations, rather than provoke a government crackdown.

On March 28, security forces forcibly dispersed a demonstration of veterans' wives; several women were detained briefly. Authorities claimed that no force was used and that only those women who refused to leave the demonstration were detained.

No action was taken against security forces that used excessive force to disperse demonstrations in 2003 or 2002.

The Constitution provides for freedom of association provided that certain legal requirements are met; however, the Government restricted this right in practice. Political parties are required to register with the Government. The Government continued to harass and intimidate members of groups who were viewed as opposed to the Government (see Section 1.f.).

Nonpolitical associations also must register and be approved by the Ministry of Interior (MOI).

c. Freedom of Religion

The Constitution, while declaring Islam to be the state religion, provides for freedom of religion, and the Government generally respected this right in practice; however, proselytizing was discouraged. Although Islam is the state religion, the Government imposed no sanctions on those who choose to ignore Islamic teachings or practice other faiths. More than 99 percent of the population was Sunni Muslim.

During the year, two Mohamedian sheikhs were arrested and imprisoned on charges of libel after criticizing the President (see Section 2.a.).

The Government requires that religious groups be registered with the MOI. In 2003, Baha'i leaders reported they were refused the right to register; it was unknown whether they were able to register by year's end.

There is no legal prohibition against proselytizing; however, proselytizing was discouraged.

For a more detailed discussion, see the [2004 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2004/\)](https://2009-2017.state.gov/j/drl/rls/irf/2004/).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights; however, the Government at times limited them in practice.

On January 29, the Government declared the country "mine safe" after demining efforts cleared a majority of all mines laid in the 1990s in Tadjoura and Obock districts. (Areas that have little impact on civilian safety, agriculture, or infrastructure development do not require clearance before a country can be declared "mine safe," and the Government has plotted and

publicized the locations of all such remaining mines.)

A judge may order a passport seized from persons under judicial surveillance or awaiting trial; however, there were no reports during the year that persons were restricted from leaving the country.

The law prohibits forced exile, and the Government did not use it.

The law provides for the granting of asylum or refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees or its 1967 Protocol. In practice, the Government provided some protection against refoulement, the return of persons to a country where they feared protection. However, the Government did not routinely grant refugee or asylum status, and there were unconfirmed reports during the year of the forced return of persons to a country where they feared persecution, specifically Ethiopia.

The country hosted an estimated 22,000 refugees and illegal foreigners at year's end. Although the Government officially did not recognize those refugees under the protection of the U.N. High Commission for Refugees (UNHCR), the Government cooperated with the UNHCR in providing assistance to more than 18,000 registered Somali and Ethiopian residents of the 2 remaining refugee camps in Hol Hol and Ali Addeh. During the year, the UNHCR repatriated 7,575 Somaliland refugees who had fled to the country during the Somaliland civil war.

During the year, the Government rounded up and deported undocumented foreigners--primarily from Ethiopia, Somalia, and Yemen; however, unlike in the previous year, there were no reports that such roundups resulted in deaths. In 2003, more than 80,000 undocumented foreigners were forced to leave the country, and there were numerous reports of deaths resulting from exposure and overcrowding.

In June, the National Eligibility Commission finished processing the approximately 8,000 requests for asylum from undocumented foreigners, who claimed fear of persecution during the 2003 mass expulsion of illegal immigrants. The Commission granted asylum status to more than 4,000 southern Somalis and 100 Ethiopians; approximately 4,000 individuals were denied status and repatriated to their countries of origin in June. Those individuals granted asylum were transferred to either Ali Adde or Hol Hol Refugee camps, where they were awaiting resettlement at year's end.

During the year, unknown assailants reportedly raped two women in the Aour Aoussa refugee camp; unconfirmed reports indicated that a third woman also may have been raped. The women were taken to Djibouti City for treatment and relocated to other refugee camps.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their Government; however, the Government limited this right in practice.

The RPP candidate Ismael Omar Guelleh, the designated successor of former President Hassan Gouled Aptidon, won the 1999 election with 74 percent of the vote. For the first time since multiparty elections began in 1992, no group boycotted the vote. Although Moussa Ahmed Idriss and the Unified Djiboutian Opposition Party challenged the results, alleging election "irregularities" and asserting that "foreigners" voted in various districts of the capital, international and domestic observers considered the election to be generally fair and transparent, citing only minor irregularities.

In January 2003, the country held its first multiparty elections. The legislative elections were contested by the progovernment coalition Union for the Presidential Majority (UMP) and the opposition coalition Union for a Democratic Alternative (UAD). The UMP was dominated by RPP, the ruling party since independence. The RPP continued to carefully control the political system. Official tallies registered a UMP majority victory in all 5 voter districts and a sweep of all 65 legislative seats, although the UAD received 37 percent of the vote count. International observers noted the peaceful conditions during the election but also identified irregularities in the process. The opposition claims of massive fraud centered on the electoral list, which was

not made public, and accusations that the Government stuffed ballot boxes, mobilized military units to vote multiple times and intimidate opposition supporters, and changed vote counts in some districts. In February 2003, the Constitutional Council rejected the UAD appeal to annul the elections.

There were no laws to provide public access to government information. La Chambre des Comptes, a public expenditures audit board established in 1997 to fight corruption and promote transparency, issued its second annual report on government expenditures during the year; however, the report was not made available to the public.

There were 7 women in the 65 seat legislature. Seven legislative seats were reserved for women by presidential decree in the January 2003 elections. The country's first female parliament members took office when the UMP legislature convened in February 2003. Hawa Ahmed Youssouf served as Minister of State for the Promotion of Women, Family, and Social Affairs and reported to the Prime Minister. Khadija Abeba, President of the Supreme Court, was the highest ranking female official and, according to the Constitution, would become interim President should the presidency become vacant.

There were 9 members of minorities non Issa Somali clans (Issaks, Gadaboursis, and Darood) and Arabs in the 65 seat legislature. There were 3 members of minorities in the 20 seat cabinet. The President's subclan, the Issa Mamassans, wielded disproportionate power in affairs of state. Afars held a number of senior ministerial posts; however, they were not well represented at lower levels. Somali clans other than the Issa and citizens of Yemeni origin were limited unofficially to one ministerial post each. There also were informal limits on the number of seats for each group in Parliament.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A few domestic human rights groups generally operated without serious government restriction, conducting limited investigations and sometimes publishing their findings on human rights cases. Government officials generally disregarded their views. The local human rights group LDDH operated without government interference during the year. The Union of Djiboutian Women (UNFD) and the Djiboutian Association for the Promotion of the Family promoted the rights of women and children.

The ICRC maintained a small office that was staffed with locally hired personnel. The ICRC regional representative, who was based in Nairobi, visited the country during the year.

There was a government ombudsman, who also served as a legislator in the Parliament and whose specific responsibilities included mediation between governmental and nongovernmental organizations. There was no record of any successful mediation carried out by his office. The National Human Rights Committee for the Promotion and Protection of Human Rights was inactive during the year.

On May 14, the Government held a national forum on human rights to solicit public views and to discuss possible human rights legislation. The four opposition parties refused to participate, charging that the Government was not serious because it had failed to respond to human rights claims filed by the parties during the year. The LDDH also refused to participate because the forum did not include international human rights observer groups. The Government had not made public its findings on the forum by year's end.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The Constitution prohibits discrimination on the basis of language, race, or sex; however, discrimination against women and ethnic minorities persisted. The Government's enforcement of laws to protect women and children was ineffective.

Women

Domestic violence against women existed, but few cases were reported. Violence against women generally was addressed within the family or clan structure rather than in the courts. The police rarely intervened in domestic violence incidents, and the media reported only the most extreme examples, such as murder. The law includes sentences of up to 20 years' imprisonment for rapists. The number of such cases prosecuted during the year was unknown.

It was believed that as many as 98 percent of females have undergone FGM. FGM traditionally was performed on girls between the ages of 7 and 10. The law states that "violence causing genital mutilation" is punishable by 5 years' imprisonment and a fine of more than \$5,650 (1 million DF); however, the Government has not yet convicted anyone under this statute. The efforts of the UNFD and other groups to educate women were having some effect in the capital city. Many believed that the incidence and severity of infibulation have decreased, although no systematic data were available on the problem. U.N. and other experts believed that lesser forms of FGM still were practiced widely and that infibulation still was common in rural areas.

Prostitution is illegal; however, it was a significant problem. In general, there were two categories of prostitutes: Those with apartments and those on the streets. The first group was largely tolerated and catered to the foreign (particularly military) community. Police raped prostitutes (see Section 1.c.). Refugees and girls from poor families were at greater risk of becoming street prostitutes.

Women legally possess full civil rights; however, custom and traditional societal discrimination in education have resulted in a secondary role for women in public life and fewer employment opportunities. Women largely were confined to trade and secretarial fields. Customary law, which is based on Shari'a, discriminates against women in travel; however, during the year, the Government published and began implementing the 2002 Family Code, which replaces Shari'a in governing the majority of laws pertaining to family and personal matters (see Section 1.e.). Male children inherited larger percentages of estates than did female children. The few women who were educated increasingly turned to the regular courts to defend their interests.

Children

The Government devoted almost no public funds to the advancement of children's rights and welfare. A few charitable organizations worked with children. Primary education was compulsory; however, the Government did not monitor compliance. The Government provided tuition free public education, but extra expenses, such as transportation, book fees, and chalk, could be prohibitive to poorer families. School facilities continued to be inadequate. Teacher salaries continued to be in arrears, and a large percentage of highly qualified teachers have left the profession (see Section 6.e.). Approximately 20 percent of children who started secondary school completed their education. Only 62 percent of girls attended primary school, compared with 73 percent of boys, and only 23 percent of girls attended secondary school, compared with 33 percent of boys. Only 32 percent of girls were literate, compared with 60 percent of boys, and more than 53 percent of the total population was illiterate. In rural areas, limited access to schools, a shortage of educational materials, and cultural attitudes led to significantly lower enrollment and greater disparities in enrollment between boys and girls.

Child abuse existed; however, the Government has not used existing provisions of the law to deal with child abuse seriously, and punishments generally were light. For example, perpetrators of rape or abuse generally were fined an amount sufficient to cover the child's medical care.

FGM was performed on as many as 98 percent of young girls (see Section 5, Women).

Child labor existed (see Section 6.d.).

Trafficking in Persons

The law does not prohibit trafficking in persons; however, there were no reports of persons being trafficked to, from, or within the country. Trafficking could be prosecuted under various sections of the Penal Code, including "exploitation of the weakness or ignorance of persons" or "exerting pressure on a person so that the person engages in prostitution."

Persons with Disabilities

Although persons with disabilities have access to education and public health facilities, there was no specific law that addressed the needs of persons with disabilities, and there were no laws or regulations that prevent job discrimination against persons with disabilities. The Government did not mandate accessibility to buildings or government services for persons with disabilities.

National/Racial/Ethnic Minorities

The Government continued to discriminate against citizens on the basis of ethnicity in employment and job advancement. Somali Issas were the majority ethnic group and controlled the ruling party, the civil and security services, and the military forces. Discrimination based on ethnicity and clan affiliation limited the role of members of minority groups and clans in government and politics.

Section 6 Worker Rights

a. The Right of Association

The Constitution provides for the right to join unions; however, the Government restricted these rights.

Under the labor code, a union must have government sanction to exist. In recent years, the Government suppressed independent, representative unions by firing their leaders, preventing them from holding congresses, and creating government sponsored shadow unions to replace them.

The law prohibits anti-union discrimination, and employers found legally guilty of discrimination were required to reinstate workers fired for union activities; however, the Government neither enforced nor complied with the law.

b. The Right to Organize and Bargain Collectively

The law allows unions to conduct their activities without interference; however, the Government did not protect this right in practice. Collective bargaining did not occur. Relations between employers and workers were informal and paternalistic. The Government could and did select labor representatives. Employers generally established wage rates on the basis of Ministry of Labor guidelines. In disputes over wages or health and safety problems, the Ministry of Labor encouraged direct resolution by labor representatives and employers. Workers or employers may request formal administrative hearings before the Ministry's inspection service. The International Labor Organization (ILO) has noted that the same personnel were employed for both inspection and dispute settlement, and critics claimed that both services suffered from poor enforcement due to its low priority and inadequate funding.

The law provides for the right to strike and requires representatives of employees who plan to strike to contact the Ministry of Interior 48 hours in advance.

The law confers upon the President broad powers to requisition public servants who are considered indispensable to the operation of essential public services. The ILO has noted that this power has been defined too broadly.

The Government on occasion retaliated against strikers. For example, Kamil Hassan, a schoolteacher, who was reinstated in 2002 after leading a teacher's strike in 1997, was still not teaching at year's end. During the year, the salaries of Hassan and four other teachers reportedly were blocked repeatedly by order of the Prime Minister.

There is an export processing zone; however, its activity level was low during the year.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including by children, and there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits all labor by children under the age of 14, but the Government did not always enforce this prohibition effectively, and child labor, although not common, existed. Children generally were not employed in hazardous work. Children may and did work in family owned businesses, such as restaurants and small shops, at all hours of the day and night. A shortage of labor inspectors reduced the likelihood of investigation into reports of child labor.

On June 21, the Government ratified ILO Convention 182 on the Elimination of the Worst Forms of Child Labor.

e. Acceptable Conditions of Work

Only a small minority of the population was engaged in wage employment. The Government administratively sets minimum wage rates according to occupational categories, and the Ministry of Labor is charged with enforcement. The monthly wage rate for unskilled labor, set in 1976, was approximately \$125 (22,000 DF); however, it was not enforced in practice. The national minimum wage did not provide a decent standard of living for a worker and family. The Government still owed 3 months' worth of salary arrears from 1995 and 1997 to teachers, security forces, and civil servants.

By law, the workweek was 40 hours, normally spread over 6 days. The Ministry of Labor is responsible for enforcing occupational health and safety standards, wages, and work hours. Because enforcement was ineffective, workers sometimes faced hazardous working conditions. Workers rarely protested, mainly due to fear that others willing to accept the risks would replace them. There were no laws or regulations permitting workers to refuse to carry out dangerous work assignments without jeopardizing their continued employment.

Only legal foreign workers were protected under the law.

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